

Ashwani Kumar v. State of U.P.

Allahabad High Court · Division Bench · 16 July 2013 · Writ-C No. 37652 of 2013 · **Writ disposed; no tenant connection without considering landlord objection.**

HEADNOTE

A landlord alleged that occupants claiming tenancy were seeking a new connection without his no-objection. Disposing of the writ at the threshold, and recording the licensee's statement that a tenanted-premises connection requires the landlord's no-objection under the Supply Code, the Court directed the Executive Engineer not to grant supply to those occupants without first considering the landlord's pending objection.

FACTUAL SUMMARY

The petitioner, owner of the property, alleged that respondents 4 and 5 were seeking a new electricity connection from the Urban Distribution Division at Moradabad as his tenants, without his no-objection. He contended that the Supply Code did not permit a tenant connection without the landlord's consent, and had objected to the Executive Engineer, Vidyut Nagariya Vitran Khand (First), Moradabad, on 28 June 2013. Counsel for the corporation stated that a connection in tenanted premises could be granted only after the landlord's no-objection. Private respondents were not noticed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

landlord-objection-before-tenant-connection

HOLDING

The distribution licensee shall not grant an electricity connection to persons claiming tenancy of the petitioner's premises without first considering the landlord's objection already filed before the Executive Engineer. ¶ 1

FLAG Order cites the Electricity Supply Code generally for landlord no-objection on tenanted premises; no clause number is given.

PRINCIPLE TAGS

owner-consent-mandatory-for-new-connection-clause-4.4 A landlord alleged that occupants claiming tenancy were seeking a new connection without his no-objection.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE LANDLORD'S OBJECTION AND WHETHER THE OCCUPANTS WERE ENTITLED TO A CONNECTION

The Court did not decide whether a landlord's no-objection is a mandatory condition under the Supply Code, nor whether respondents 4 and 5 could be given supply; that was left to the Executive Engineer. ¶ 1